

It is recommended counsel's requested extraordinary fees be reduced to \$2,250.00, comprising 3.5 hours of attorney time at \$400/hr and 4.25 hours of paralegal time at \$200/hr. The requested attorney rate exceeds a reasonable rate for the services described in counsel's declaration. The requested paralegal rate is exceptionally inflated for the services described in counsel's declaration.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing. Local Rule 80.1.4.

7. S-PR-0012937 In Re the Estate of Bakos, John Edward MD

Petition to administer estate (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

Petition to administer estate (M Bakos)

Appearance is required for continued hearing on petition to administer estate.

Will contest (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

Missing 30 days' service of summons to all persons entitled to service of notice of the petition to probate the will. Prob.C. § 8250(a).

Ex parte application for trial preference

Appearance is required for hearing on ex parte application for trial preference.

It is again recommended the application be denied for the reasons set forth in prior calendar notes.

8. S-PR-0013289 In Re the Estate of Wiley, Peter Cornelius

Petitioner response is needed: petitioner reports that estate real property was sold for \$525,000. The allegations instead establish that no real property was sold (real property remains in the estate; there are no proceeds of sale in the estate). Petitioner and other heirs appear to have agreed upon a valuation for distribution of the property. Valuation change for distribution purposes does not constitute sale of property. Because no sale occurred, there is also no gain on sale of real property for any purpose, including calculation of attorney fees.